

		<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777. In fact, cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. <i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39. This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” <i>Id.</i> at 39. Discussion Defendant’s proposed cross-complaint includes indemnity causes of action. Further, in the absence of opposition there is no claim of prejudice and no reason not to follow the general rule of liberal amendment. Accordingly, Defendant’s motion for leave to file its proposed cross-complaint is granted. The court will set a Case Management Conference on 9/14/26 at 1:30 p.m. concurrent with future discovery motions previously calendared. Trans Pak to give notice.
9	Krishna Menon v. Saddleback Memorial 2024-01379144	Motion for Summary Judgment <u>Evidentiary Objections</u> Plaintiffs’ evidentiary objections, nos. 1 through 4, are overruled. (See ROA 192.) The Court declines to rule on objections, nos. 5 and 6, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) <u>Summary Judgment Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her

initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the material allegations in the plaintiff's complaint. (*Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1132.) "Thus, a 'defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.' " (*Id.* at p. 1133 [citations omitted]; *Alameda Health System v. Alameda County Employees' Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1174 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action"].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence Claims

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*San Antonio Regional Hospital v. Superior Court* (2024) 102 Cal.App.5th 346, 350, citing *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) "The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge." (*Ibid.*, citing *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) "Proving the third element, causation, also requires " 'competent expert testimony.' " (*Ibid.*, *Miranda v. Bomel Construction Co., Inc.* (2010) 187 Cal.App.4th 1326, 1336.)

"An expert declaration is admissible to support or defeat summary judgment if the expert's testimony would be admissible at trial in accordance with Evidence Code section 720." (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, "[a] person is qualified to testify as an expert if he has special

knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524.) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743; accord *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 505.)

Where, as here, a plaintiff alleges a corporate defendant acted “by and through its agents and employees” (Compl. at p. 4, ¶ GN-1), the corporate defendant’s vicarious liability is “wholly dependent upon or derived from the liability of the employee.” (*Lathrop v. HealthCare Partners Medical Group* (2004) 114 Cal.App.4th 1412, 1423.)

In their complaint, Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon (“Minor,” collectively, “Plaintiffs”) allege Saddleback Memorial, “by and through its agents and employees..., are responsible for the negligent acts and omissions of its agents and employees under the doctrines of agency and respondeat superior. Their negligent acts and omissions occurred during the labor and delivery and post delivery care of minor plaintiff, Krishna Menon, which resulted in him sustaining an otherwise avoidable severe and permanent brain injury and additional physical injuries that currently require daily dialysis treatments and a feeding tube one year post-birth.” (Compl. at p. 4, ¶ GN-1.) With respect to Devi’s claims, Plaintiff allege Saddleback Memorial, “by and through its agents and employees..., are responsible for the negligent acts of its agents and employees under the doctrines of agency and respondeat superior. Their negligent acts and omissions occurred during the prenatal care, labor and delivery and post delivery care of Ms. Geetha Devi which resulted in her developing severe pain and suffering.” (Compl. at p. 5, ¶ GN-1.) Devi also “suffered severe emotional distress due to her witnessing the traumatic birth of her son, the minor plaintiff, Krishna Menon, and Krishna’s subsequent neurological injury and its sequelae.” (Compl. at p. 6, ¶ GN-1) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are “entitled to recover for this emotional distress” pursuant to *Thing v. La Chusa* (1989) 48 Cal. 3d 644.” (Compl. at p. 7, ¶ GN-1.)

In moving for summary judgment, Saddleback Memorial has provided a declaration from Joseph G. Ouzounian, M.D., MBA. (ROA 143.) Dr. Ouzounian attests he is a physician licensed to practice medicine in the State of California, and is board-certified by the American Board of Obstetrics and Gynecology. (Ouzounian Decl. at ¶¶ 3-4.) In

preparing his declaration, Dr. Ouzounian reviewed “various case materials regarding Plaintiff,” including “Plaintiffs’ Complaint (Exhibit B), Plaintiff, Parvathi Devi Geetha Devi, Medical Records from Saddleback Memorial Medical Center (Exhibit C), Minor Plaintiff, Krishna Menon’s Medical Records from Saddleback Memorial Medical Center (Exhibit D) and Minor Plaintiff, Krishna Menon’s Medical Records from Miller Children’s Hospital (Exhibit E).” (Ouzounian Decl. at ¶ 6.)

Dr. Ouzounian provides the following opinions:

- “that the staff at Saddleback Memorial Medical Center met the standard of care in the community with regard to the care and treatment provided to Plaintiff, Parvathi Devi Geetha Devi. Plaintiff, Parvathi Devi Geetha Devi was expeditious admitted, her and her fetus were appropriately monitored, the hospitalist M.D. was timely contacted”;
- “Upon learning that the placental ultrasound was suspicious for bleeding, the hospital staff assisted Dr. Penick and immediately transported Plaintiff to surgery for an emergency Cesarean section”;
- “the staff at Saddleback Memorial Medical Center did not cause or contribute to any delayed delivery”;
- “the staff at Saddleback Memorial Medical Center did not cause any injury that caused Krishna Menon’s admission to the NICU”; and,
- “the staff at Saddleback Memorial Medical Center did not cause any alleged diagnosis of mild hypoxic ischemic encephalopathy.” (Ouzounian Decl. at ¶¶ 9a.-9e.

In opposing the motion, Plaintiffs claim Saddleback Memorial has not met its initial burden, because it purportedly failed to address theories pleaded in Plaintiffs’ Complaint. Specifically, Plaintiffs contend Saddleback Memorial is “silent on Plaintiffs’ pleaded post-delivery and neonatal theory” because its expert did not offer an opinion “regarding (1) the adequacy of neonatal resuscitation and delivery-room care; (2) whether therapeutic hypothermia should have been initiated at Saddleback, and whether the neuroprotective window was met before transfer; or (3) the appropriateness of the inter-facility transport and the selection of the receiving hospital.” (ROA 194 [Opp’n at p. 6].)

Plaintiffs are correct that Dr. Ouzounian’s declaration did not specifically address these three issues. However, these three issues are also conspicuously absent from Plaintiffs’ complaint. Other than a

barebones reference to “post delivery care,” there are no *factual allegations* that put Saddleback Memorial on notice that Plaintiffs are claiming negligence in the “adequacy of neonatal resuscitation and delivery-room care,” “whether therapeutic hypothermia should have been initiated at Saddleback, and whether the neuroprotective window was met before transfer,” or “the appropriateness of the inter-facility transport and the selection of the receiving hospital.” As set forth, above, “summary judgment is defined by the *material allegations* in the pleadings.” Plaintiffs did not plead any factual allegations about these three issues with respect to Saddleback Memorial. The only facts alleged with respect to negligence in the post delivery care were pled against Dr. Brown and UC Regents. (See Compl. at p. 4.) Accordingly, Plaintiffs cannot avoid summary judgment by expanding the issues beyond the material allegations in the Complaint. (See *Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1132 [trial court properly granted summary judgment on intentional tort claim where plaintiffs’ complaint failed to allege any acts constituting the tort; “As stated, there was no intentional tort identified in the pleadings”].)

Based on the foregoing, the Court finds Saddleback Memorial has met its initial burden on the medical negligence claims. Because Saddleback Memorial has met its burden on the medical negligence claims, it has also met its burden on the negligent infliction of emotional distress claim.

“Negligent infliction of emotional distress “ ‘is not an independent tort, but the tort of *negligence*,’ ” to which “ ‘traditional elements of duty, breach of duty, causation, and damages apply.’ ” (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547, citation omitted.) In other words, a bystander’s claim for negligent infliction of emotional distress depends upon the existence of an act of negligence that caused injury to the victim. (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 647 [“It is in that context that we consider the appropriate application of the concept of ‘duty’ in an area that has long divided this court—recognition of the right of persons, whose only injury is emotional distress, to recover damages when that distress is caused by knowledge of the injury to a third person *caused by the defendant’s negligence*”] [emphasis added].) Absent a triable issue of material fact on the medical negligence claims, Devi and Menon’s bystander theory under *Thing v. La Chusa*, which is based on witnessing a “negligent injury” to Minor, necessarily fails.

Request for Continuance

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts

essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” Alternatively, the motion “may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due. (Code Civ. Proc., § 437c, subd. (h).)

“A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.) The party requesting a continuance does not need to show that the evidence *does* exist, but it must show that it *may* exist. Further, the supporting affidavit or declaration “must detail the specific facts that would show the existence of controverting evidence.” (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420.) If this showing is made, then the continuance is “virtually mandated.” (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 34, citation omitted.) “Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h).” (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.)

Here, the Court finds Plaintiffs have not made the showing required under CCP section 437c(h), for their requested continuance of 120 days. Plaintiffs have not shown that the evidence necessary to defeat this motion may exist. Plaintiffs’ counsel states, in relevant part, that: “Plaintiffs respectfully submit that there are facts essential to justify opposition that exist but cannot be presented at this time and respectfully request a continuance of the pending Motions for Summary Judgment for 120 days while the Plaintiffs seek new counsel.” (ROA 194 [Rosenthal Decl. at ¶ 4].) But, as the court previously pointed out in its prior rulings, the supporting declaration must show that the opposing evidence *may* exist, *and* describe *in detail* the “specific facts that would show the existence of controverting evidence.” Plaintiffs have not shown that opposing evidence *may* exist, nor have they given the court any reason to believe they may exist—all they have shown, is that they are currently not able to present any opposing evidence, which is not sufficient.

In his declaration, Menon adds: “We have identified, through an expert-witness service, a board-certified neonatologist who is willing to review the complete medical records. Based on the treating

		physicians’ own contemporaneous notes and our communications with the expert service, we have reason to believe that, upon that review, a qualified neonatologist will opine that the post-delivery and neonatal care fell below the standard of care and caused or contributed to Krishna’s injuries. Krishna's treating pediatric neurologist has also expressed willingness to testify.” (Menon Decl. at ¶ 12.) A “willingness to review” the medical records is far from showing that Plaintiffs have retained an expert who is willing to provide a competing opinion. Even assuming for the sake of argument that Plaintiffs could find a competing expert opinion on these issues, it would be inappropriate to expand summary judgment beyond the limits of the material allegations in the complaint. Defendant shall give notice of the ruling.
10	Takahashi vs. American Honda Motor Co., Inc. 2024-01384148	Motion to Compel Deposition (Oral or Written) The Court denies Plaintiff Mariko Takashashi’s Motion for a second session of the Person Most Qualified deposition for Defendant American Honda Motor Co. Inc. and for further production of documents. The Court also notes a failure to adequately meet and confer as set forth in Miner’s declaration and per the Court’s Order. (Miner Decl., ¶¶26-33.) The Court also notes that California Rules of Court, rule 2.551(a) states plainly that a record must not be filed under seal without a court order, and the court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties (Rules of Court, Rule 2.551.) Moving to the merits, the Motion is denied. The person or persons designated by the entity must testify to the extent of any information known or reasonably available to them. (CCP § 2025.230.) Here, this Motion is made pursuant to Code of Civil Procedure §§ 2025.450 and 2031.310, et seq. according to the Notice of Motion. If, after the service of a deposition notice, a party, or an officer, director, managing agent, employee, or designated deponent of a party, fails to appear, testify, or produce documents, electronically